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THE CARBON BORDER ADJUSTMENT MECHANISM: “A COMPETITIVE, GREEN AND FAIR PRICE ON CARBON?”

A qualitative content analysis of framing and
legitimation in the EU policy process, 2021–2025

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Abstract

The Carbon Border Adjustment Mechanism (CBAM) is one of the European Union's most novel and contested climate policy instruments. While existing research has primarily examined its economic, legal and geopolitical implications, less attention has been paid to the ideas and justificatory logics through which the mechanism has been framed and legitimised within the EU policy process. This study addresses that gap by analysing how EU institutions frame and legitimise CBAM from the Commission's 2021 proposal to the early revision in 2025, and how climate objectives are positioned in relation to competitiveness and justice. Drawing on social constructivism and framing theory, the study conducts a qualitative content analysis of official policy documents produced by the European Commission, the European Parliament and the Council of the European Union. The findings show that CBAM is consistently framed through a climate-integrity logic, in which carbon leakage constitutes the central problem definition and the mechanism is justified as necessary to preserve the effectiveness of EU climate policy. However, climate ambition is not legitimised in isolation. It is made politically, legally and administratively sustainable through supporting logics of competitiveness, World Trade Organization compatibility, administrative feasibility and proportionality. Justice is present in the material, but mainly through procedural and cooperative forms of legitimacy rather than through redistributive commitments. The thesis argues that CBAM's competing rationales are managed through legitimisation rather than resolved. By tracing how climate, competitiveness and justice are articulated across the EU the policy process, the study contributes to debates on how contested climate policies are framed and legitimised in complex institutional settings.

Key words: Carbon Border Adjustment Mechanism, European Union, climate policy, framing, legitimisation, qualitative content analysis

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List of Abbreviations

Abbreviations	Full term
BCA	Border Carbon Adjustment
CBAM	Carbon Border Adjustment Mechanism
EU	European Union
ETS	Emissions Trading System
GHG	Greenhouse gas
LDC	Least Developed Country
SME	Small and medium sized enterprises
WTO	World Trade Organization
QCA	Qualitative content analysis

AI declaration

In the writing of this thesis, AI tools were used solely for language editing and polishing, including support with grammar and clarity. AI was not used to conduct the analysis or generate the thesis findings. The author remains fully responsible for the content and argumentation of the thesis.

1 Introduction

“Carbon must have its price – because nature cannot pay the price anymore. This **Carbon Border Adjustment Mechanism** should motivate foreign producers and EU importers to reduce their carbon emissions, while ensuring that we level the playing field in a WTO-compatible way.”

Ursula von der Leyen, Brussels, 2020

The Carbon Border Adjustment Mechanism (CBAM) is among the most novel climate policy instruments of the European Union (EU) and has generated significant debate within global climate and trade governance. Introduced as part of the European Green Deal and the Fit for 55 package, CBAM represents the world’s first operational carbon border adjustment mechanism and extends the logic of EU carbon pricing to selected energy-intensive imports (European Commission, 2021a, p. 1; European Parliament and Council, 2023, Article 1; Perdana and Vielle, 2022, p. 2). The mechanism is designed to preserve the effectiveness of EU climate policy and reduce the risk of carbon leakage, defined as the relocation of carbon-intensive production to jurisdictions with less stringent climate regulation (Cosbey et al., 2019, p. 5). At the same time, because CBAM operates through a border mechanism, it affects trade relations, competitive conditions and third-country exporters (Eicke et al., 2021; Overland and Sabyrbekov, 2022). It therefore raises questions about World Trade Organization (WTO) compatibility, competitive effects and the fairness of imposing carbon-pricing requirements on actors with unequal capacities to adjust (Böhringer et al., 2022; Bacchus, 2021; Perdana and Vielle, 2022; André and Pirlot, 2025; Corvino, 2026). The opening quotation by Commission President Ursula von der Leyen captures this threefold rationale by linking decarbonisation objectives to the need to “level the playing field” in a WTO-compatible manner (European Commission, 2020). For this reason, CBAM is analytically salient not only as a climate instrument, but also as a case through which to examine how climate ambition is framed and legitimised at the intersection of climate policy, trade governance and justice concerns.

CBAM emerged at a time when climate policy was becoming increasingly central to the EU’s political agenda. A decade has passed since the adoption of the Paris Agreement, yet the need to reduce greenhouse gas (GHG) emissions persists and is, if anything, more urgent than ever. By 2024, global temperatures had already exceeded 1.5°C above pre-industrial levels for the first time in a calendar

year, underscoring the insufficiency of existing climate commitments to deliver the goals of the Paris Agreement (IPCC, 2022; Copernicus, 2024). This is especially relevant for major emitting sectors involved in the international trade in goods, whose production is estimated to account for approximately 20-30% of global GHG emissions (WTO, 2022, p. 4). In response, the EU has sought to strengthen its climate policy framework through the European Green Deal, including by extending carbon pricing beyond the internal market through CBAM. Yet the mechanism's novelty lies not only in its climate ambition, but in the way it combines environmental objectives with trade-related design (European Commission, 2023).

CBAM was formally adopted in 2023 and has since generated a growing body of research. Much of this literature suggests that the mechanism's effectiveness depends on its institutional and economic design, including how emissions are measured and how implementation burdens are managed (Jakob and Mehling, 2025). The 2025 amending regulation exemplifies these concerns by introducing simplification measures intended to ease implementation while preserving CBAM's overall climate ambition (European Commission, 2025a). However, CBAM's governance complexity is not only technical. Existing research also shows that carbon border adjustments may produce uneven distributive and trade-related effects. The broader literature has theorised such instruments as potentially shifting the economic burden of developed-world climate policies onto the developing world, thereby raising questions of distributive justice (Böhringer et al., 2018). CBAM-specific studies further question whether the mechanism may function as a protectionist tool or distort competitive conditions in trade (Zhong and Pei, 2022; Eicke et al., 2021; Overland and Sabyrbekov, 2022; Böhringer et al., 2022). This contestation is further complicated by the fact that empirical evidence of actual carbon leakage remains limited (Bellora and Fontagné, 2023). The literature therefore highlights a central political and normative tension in CBAM, as the mechanism is expected to protect climate ambition while avoiding trade distortions and uneven distributive effects. Yet this tension cannot be fully captured by analysing design choices and estimated effects alone.

This gap is particularly important in light of previous research on framing in EU climate policy, which shows that climate policy becomes politically legitimate not only through appeals to environmental necessity, but also through its connection to other policy domains and strategic framings, including competitiveness, coherence, feasibility, innovation and market-oriented logics (Dupont, 2015; Bocquillon, 2018; Skjærseth and Wettstad, 2008; Eicke et al., 2021; Kinski and Ripoll Servent, 2022). What remains less explored is how EU institutions themselves frame and connect these rationales in the policy process, and how this shapes the legitimisation of CBAM as an appropriate policy response.

1.1 Research aim and outline

This study contributes to research on EU climate governance by analysing how the framing of CBAM shapes the justification of the mechanism as a legitimate policy response. In line with a constructivist approach, policy instruments are not understood as neutral technical tools, but as political responses whose meaning and legitimacy are shaped through policy discourse (Saurugger, 2018, p. 20; Entman, 1993, pp. 51-52; Schmidt, 2008, pp. 303-305). Framing is analytically useful in this regard, as it influences how actors define policy problems, assign responsibility and present particular measures as appropriate (Entman, 1993, p. 52). Building on this theoretical starting point, this study examines how EU institutions present CBAM in the policy process. Previous research shows that CBAM brings together several partly overlapping but potentially competing rationales, including the prevention of carbon leakage, the equalisation of competitive conditions, the possible diffusion of carbon pricing beyond the EU and concerns about fairness. While these studies provide important insights into the mechanism's competing objectives, less attention has been paid to how EU institutions frame and connect these rationales in official policy texts. Guided by Entman's framing theory and qualitative content analysis, this study examines official EU policy documents produced during the CBAM policy process, including the Commission proposal from 2021, the adopted regulation from 2023 and the simplification amendment from 2025. These documents are relevant because they represent the official policy positions and justifications of EU institutions. Based on this aim, the study addresses the following research question:

How do EU institutions frame and legitimise the Carbon Border Adjustment Mechanism from policy proposal to early revision, and how are climate objectives positioned in relation to concerns of competitiveness and justice?

The thesis is structured as follows. The next section provides background on CBAM and its role in extending EU carbon pricing to the border. Chapter 2 reviews previous research on the climate-trade nexus, the CBAM trilemma and framing in EU climate governance, before identifying the research gap and contribution of the study. Chapter 3 presents the theoretical framework by grounding the study in social constructivism and using framing theory to examine how policy problems and solutions are

constructed and legitimised. Chapter 4 outlines the methodological approach, including the qualitative research design, the selection of official EU policy documents and the use of qualitative content analysis to identify framing patterns across the material, as well as the limitations of the study. Chapter 5 analyses how CBAM is framed during the policy process from proposal to early revision and compares the main cross-phase patterns. Chapter 6 discusses the findings in relation to previous research and considers their theoretical and policy implications. Chapter 7 concludes the thesis by answering the research question, clarifying the study's main contribution and suggesting avenues for further research.

1.2 Background: Extending carbon pricing to the EU border

Carbon pricing has become a central policy instrument in EU climate governance. As a policy instrument, carbon pricing functions as a tool through which governing institutions pursue policy objectives by attaching a cost to GHG emissions and creating economic incentives to reduce them. In the EU, the EU Emissions Trading System (EU ETS) institutionalises carbon pricing and has served as a cornerstone of EU climate policy since its launch in 2005 (Howlett, 1991, p. 2; Moore et al., 2021; European Commission, 2021c). CBAM builds on this carbon-pricing framework but differs from conventional domestic climate instruments. By linking the carbon intensity of imported goods to access to the EU market, CBAM extends the practical reach of EU climate governance beyond the Union's internal regulatory space (Stern et al., 2026, p. 9).

The governance challenge addressed by CBAM arises when carbon costs differ across jurisdictions. If producers within the EU face higher carbon costs than competitors operating under less stringent climate rules, carbon-intensive production may relocate outside the Union. This risk is commonly referred to as carbon leakage (Cosbey et al., 2019, p. 5). CBAM responds to this risk in the form of a border carbon adjustment¹(BCA), linking the EU ETS to the carbon content of selected imports, thereby extending the logic of EU carbon pricing to goods entering the Union's market (European Commission, 2021c; European Parliament and Council, 2023). Since the mechanism operates at the border, it also makes EU climate policy relevant for producers, exporters and regulatory conditions

¹ The literature does not use a single, formally established terminology for border carbon adjustments, and the terms border carbon adjustment (BCA) and carbon border adjustment (CBA) are often used interchangeably. This study henceforth uses BCA to refer to the broader category of border-based carbon pricing instruments.

beyond the EU. CBAM therefore has broader governance significance, as it seeks to preserve the environmental effectiveness of EU climate policy while operating in a context shaped by external actors, legal constraints and market conditions (Szulecki et al., 2022).

This border extension forms part of a broader EU policy trajectory in which strengthened climate ambition has become more closely connected to trade, implementation and industrial competitiveness. This shift was visible in EU trade discourse, which moved from making trade “greener” to making trade “work for” the EU’s green transformation across policy domains (European Commission, 2021d, p. 9; Schunz, 2022, p. 17). Proposed by the Commission as part of the 2021 Fit for 55 package, CBAM was formally adopted by the EU in 2023 and entered a transitional reporting phase from 1 October 2023 to 31 December 2025. Since 2026, authorised declarants have been required under the definitive regime to purchase and surrender certificates corresponding to the embedded emissions of covered imports (European Commission, 2025a). Before this regime entered into force, the Commission proposed amendments in 2025 to simplify implementation and reduce administrative burdens while preserving the mechanism’s environmental integrity (European Commission, 2025a). This revision reflected a broader EU turn towards simplification and strategic competitiveness, in which regulatory burden, industrial capacity and competitiveness became increasingly central to the conditions under which the EU’s climate agenda was pursued (Draghi, 2024; Oberthür et al., 2026, p. 16).

2 Previous research

This chapter reviews previous research on CBAM, including the climate-trade nexus and framing in EU climate governance. It situates CBAM as a contested climate-trade instrument, discusses its competing objectives, and introduces framing research as the basis for analysing how the mechanism is constructed and legitimised. The chapter concludes by identifying the research gap and contribution of the study.

2.1 The climate and trade nexus

The climate-trade nexus refers to the growing interdependence between the two distinct areas of governance, climate and trade. Research on this nexus has largely examined the tensions that arise when climate concerns interact with the legal and institutional structures of the liberal trade order (Brewer, 2003; Zelli et al., 2013). Dobson (2023) argues that these tensions can be understood through the different normative foundations of the trade and climate regimes. The multilateral trading system has traditionally been structured around principles of equal treatment, non-discrimination and open market access, whereas climate governance recognises differences in states' historical responsibilities and capacities to respond to climate change. This is most clearly expressed in the principle of common but differentiated responsibilities and respective capabilities (CBDR-RC), which holds that states do not bear the same responsibilities or possess the same capacities in addressing climate change (Dobson, 2023, p. 378).

These differences are not merely recent developments. Rather, scholars suggest that they reflect deeper patterns of institutional governance, rooted in the fact that the post-war trade regime and the early European integration project were established in an era in which trade liberalisation and market integration were prioritised over environmental concerns, even though such concerns have become more integrated over time (GATT, 1947; Damro et al., 2008, p. 181). In other words, the governance complexity of the climate-trade nexus stems from the interaction between policy regimes that rest on different legal and normative principles. Zelli et al. (2013) explore this relationship by assessing how the logics of climate and trade governance have historically been understood as difficult to reconcile. They argue that the management of this institutional relationship has been shaped by liberal environmentalism, an approach based on the premise that economic growth and environmental

sustainability are compatible. This suggests that the relationship between trade and climate has not only been marked by conflict, but also by a particular normative understanding of how environmental objectives *should* be accommodated within existing economic and trade structures.

This historical understanding of the nexus is also reflected in how the relationship between environment and trade has been conceptualised in earlier research. Gstöhl and Schunz (2025) suggest that, before the adoption of the Paris Agreement, the interplay between environment, including climate and trade was largely approached from the trade side of the relationship. In this sense, the nexus was often understood as a “trade-environment nexus”, where the focus lay on the potential of trade to improve environmental conditions, rather than on how climate objectives might shape the terms of trade governance. The distinction indicates a shift from understanding environmental concerns as something to be accommodated within trade governance, towards recognising that climate policy may itself reshape trade relations, including conditions of the market and regulatory priorities.

The conceptual understanding of the nexus is further complicated as climate policy relies increasingly on economic and market-based instruments, which makes the nexus harder to interpret. This is evident on the EU level, where carbon pricing has become part of a more stringent decarbonisation strategy under the European Green Deal. Balogh and Mizik (2021) underline how such instruments can support climate mitigation, internalising the environmental costs of GHG emissions by attaching a price to carbon-intensive production and consumption. However, they also bring climate policy into closer contact with trade governance, since uneven carbon prices across jurisdictions can affect production costs and competitiveness. This may create incentives to facilitate trade in environmental goods, harmonise standards, promote renewable technologies and remove fossil fuel subsidies, but it also raises questions about how climate policy interacts with market conditions and trade rules. Consistent with this, Zelli et al. (2020) show that when climate policy intersects with other policy fields, the result is not only technical policy interaction but also challenges of institutional coherence, legitimacy and effectiveness. Consequently, the governance complexity of the climate-trade nexus arises not merely from the interaction between climate and trade, but from how this interaction is managed, including through unilateral climate instruments that operate at the intersection of these governance fields.

2.2 The trilemma of the Carbon Border Adjustment Mechanism

After more than a decade of caution towards border carbon adjustments (BCAs) in EU policy, the CBAM has become a major object of scholarly attention as a climate instrument situated at the intersection of climate and trade governance (de Ville et al., 2023). Much of this literature focuses on the design and expected effectiveness of the instrument, often using economic modelling to assess whether BCAs can reduce emissions and limit carbon leakage (Jakob and Mehling, 2025; Zhong and Pei, 2022). These studies also examine whether CBAM can be made compatible with WTO rules, how it may affect competitiveness, and how carbon costs may be distributed between producers, importers and consumers (Böhringer et al., 2022; Zhong and Pei, 2024). However, carbon leakage remains difficult to establish empirically, since it requires assessing how trade and investment patterns would have developed in the absence of stricter climate policy. Evidence of actual leakage therefore remains limited (Bellora and Fontagné, 2023). Scholars often attribute this to a relatively modest ambition of earlier climate policies (Aldy and Pizer, 2015). CBAM thus responds to a risk that is politically salient but not conclusively established, which increases the need to examine how the mechanism is justified. Yet, fewer studies examine the ideas and justificatory narratives that structure the debate.

Bellora and Fontagné (2023) argue that part of what makes the political contestation understandable is the explicit objective of the CBAM Regulation, namely to “level the playing field” between EU and non-EU companies by reducing differences in carbon prices (European Commission, 2021a). At the same time, the instrument seeks to address carbon leakage by reducing asymmetries in carbon costs between EU and non-EU producers. Through the political process of integrating this contested instrument into EU policy, the level-playing-field objective became part of how CBAM was made feasible within the EU after a long period of institutional hesitation (Wettestad, 2025). Whereas EU institutions maintain that CBAM complies with international obligations, notably under WTO law, scholars caution that legal disputes and a protracted trade conflict may nonetheless be difficult to avoid, given the risk of claims about discrimination or treaty breaches (Bacchus, 2021).

Although the level-playing-field rationale frames fairness primarily in terms of equal competitive conditions between EU and non-EU producers, another body of literature complicates this understanding of fairness by shifting attention to global climate justice and the distributional implications of CBAM. Perdana and Vielle (2022) show that CBAM may place particular burdens on developing countries, especially where exporters have limited administrative, financial or technological capacity to adapt to EU carbon-pricing requirements. This concern is developed further

by André and Pirlot (2025), who emphasise that the fairness of the CBAM cannot be assessed only in terms of emissions reduction, but must also consider how the costs of adjustment are distributed across countries with different levels of responsibility and capacity. Corvino (2025) places this justice concern within the broader CBAM trilemma, arguing that efforts to secure a level playing field and promote carbon pricing abroad may come into tension with the aim of ensuring climate justice.

A third strand of literature adds another dimension to this debate by examining CBAM's potential role in encouraging the diffusion of carbon pricing beyond the EU. Delbeke and Vis (2023) argue that, although the establishment of a global carbon price is not an explicit objective of the CBAM Regulation, the instrument may nevertheless function as a "stepping stone" towards broader international carbon pricing. Øverland and Huda (2022) similarly suggest that BCAs can create incentives for third countries to introduce their own carbon pricing measures, particularly where access to major markets becomes linked to the carbon costs embedded in exported goods. Szulecki et al. (2022) develop this logic further by connecting such dynamics to the idea of a *de facto* climate club, in which carbon pricing and trade-related measures are used to encourage wider participation in climate mitigation. This suggests that the CBAM may operate not only as a defensive instrument against carbon leakage, but also as a mechanism of external regulatory influence. Some scholars describe this as a form of the *Brussels Effect*, whereby the EU externalises regulatory standards beyond its borders through the market power of the single market (Bradford, 2012; 2020). In this sense, CBAM can be interpreted as an instance of regulatory diffusion in climate policy, as it extends carbon-cost internalisation to imports and may project EU carbon-pricing norms externally (Otto, 2025, p. 180).

Consequently, CBAM is best understood as a policy instrument structured by competing rationales rather than by a single policy objective. Although much of the literature has examined the mechanism through specific lenses, such as trade competitiveness, climate justice, carbon leakage or carbon-pricing diffusion, these perspectives are not necessarily mutually exclusive. Corvino (2026) argues that CBAM represents a policy trilemma, in which the goals of maintaining a level playing field, upholding climate justice and encouraging carbon-pricing diffusion must be balanced rather than solved in isolation. Smith et al. (2024) make a similar point by describing CBAM as a multifaceted policy tool whose effects depend on its interaction with global value chains, the WTO trade regime and broader governance norms. They further note that economic impacts, trade-law assessments and political strategies do not necessarily align, which may generate competing approaches to implementation. The central implication is that CBAM is contested not only because it combines

several objectives, but because these objectives interact in ways that require continuous justification and balancing within the climate-trade nexus.

2.3 Framing in EU policy research

Framing has become a relevant approach in policy research because it provides insight into how actors construct issues as policy problems and justify particular forms of action (Saurugger, 2018, p. 25). In EU studies, framing gained importance alongside the constructivist turn, which drew attention to how ideas, discourse and meaning shape policy processes (Saurugger, 2013; Daviter, 2018, p. 91). This is unsurprising given the EU's complex governance structure. With multiple levels of authority, diverse institutional roles and heterogeneous national interests, EU policymaking often involves contestation not only over policy outcomes, but also over how problems are defined, which competences are activated and which forms of intervention are presented as legitimate (Saurugger, 2018, pp. 25-26). Existing research therefore treats framing in EU policymaking not merely as rhetoric, but as part of how actors construct and establish claims as authoritative within the policy regime.

Accordingly, *who* frames an issue matters in EU policymaking, since institutional roles shape which problem definitions and justifications become salient. Scholarship has associated the European Commission with agenda-setting and policy entrepreneurship, particularly because of its role as initiator of legislative proposals and its ability to advance policy change through strategic problem definition (Bürgin, 2023, p. 23). This role has been found to be particularly relevant in EU climate policy, where the Commission has contributed to placing climate objectives higher on the political agenda and shaping the terms through which climate action is justified. The European Parliament operates according to a different institutional logic. As the EU's directly elected institution, it is shaped more strongly by representative and partisan dynamics, while also having developed a reputation as an important actor in EU environmental policy (Burns, 2021, p. 252). Studies of climate debates in the Parliament show that climate ambition is often broadly supported, but that disagreement emerges over how such ambition should be implemented and whose interests should be represented (Kinski and Ripoll Servent, 2022, pp. 257-258). The Council of the European Union represents a further institutional setting, in which policy positions are shaped through negotiation and consensus-seeking among member state governments (Heisenberg, 2005, pp. 65-66). Although these institutional settings differ, they matter because the policy process through which CBAM is proposed, negotiated and

adopted may shape both the conflicts that emerge and the final formulations through which the mechanism is justified as a legitimate EU policy response.

At the same time, EU policymaking rarely produces a single clear and coherent understanding of a policy issue. As Eising et al. (2015, pp. 522-525) argue, the number and type of frames used in EU policy debates are shaped by both institutional context and strategic action. Since the EU involves many actors with different roles and interests, several framings of the same issue may coexist within the same policy process. These frames may overlap, reinforce one another or compete for dominance, making it difficult for any single actor or rationale to fully control how a policy problem and its solutions are ultimately understood. This points to framing as an inherently contested process in EU policymaking, where multiple interpretations may coexist and shape both the terms of debate and the direction of policy outcomes (Eising et al., 2015, pp. 522-531).

2.4 Framing and legitimising climate policy in EU governance

This dynamic, the plurality of frames, is pronounced in EU climate governance. Although climate change provides a shared reference point, EU climate policy is rarely justified in environmental terms alone. Instead, climate objectives are often framed through several partly overlapping concerns (Skjærseth and Wettestad, 2008, p. 109). Drawing on the European Parliament, Kinski and Ripoll Servent (2022, p. 251) show that climate ambition is broadly endorsed as a general objective, while contestation centres on the instruments, costs and distributive implications of implementation. This suggests that political conflict is less about whether climate action is necessary and more about how climate goals are framed and justified in relation to competing priorities. Research on climate policy integration, which examines how climate objectives are incorporated into other EU policy areas (Dupont, 2015, p. 16), reinforces this point. In their study of climate policy integration in EU energy policy, Dupont and Oberthür (2012, pp. 229, 242-243) show that even where climate objectives are formally integrated into another EU policy domain, integration may remain partial and constrained by established sectoral priorities, including competitiveness-related concerns. This demonstrates that climate policy can be pursued without necessarily becoming the dominant organising principle of policy development.

Under such conditions, strategic framing becomes important because it allows actors to link climate objectives to other grounds of legitimacy. König (2019) suggests that actors use frames to increase the

political salience of climate issues and build support for particular forms of action. In the context of EU climate policy, this indicates that frames can make specific policy instruments appear not only environmentally necessary, but also economically reasonable, administratively feasible or socially acceptable. Bocquillon (2018, pp. 339-340) underlines this through her study of the EU's 2009 climate and energy package, showing that coherence between climate and energy policy is not simply institutionally given. Rather, it is actively constructed by policy entrepreneurs who use narratives and frames to connect different objectives and instruments and to build support for the policy package. Skjærseth and Wettestad (2008, pp. 108-109) provide a further example of this logic in their study of emissions trading, where they show how framing can support policy implementation by making an instrument appealing to different constituencies. The EU ETS was framed as a “win-win” policy that could appeal simultaneously to industry through cost-effectiveness, to environmental actors through ecological effectiveness and to governments through burden-sharing and international climate commitments.

Young et al. (2022, pp. 798-800) extend this insight by drawing attention to how actors frame specific climate policy instruments, particularly price-based and regulatory instruments. Their study shows that different types of climate instruments may be framed through similar economic narratives, especially around costs, benefits and distributive effects. This suggests that political viability depends not only on presenting climate action as necessary, but also on framing the chosen instrument as economically reasonable and practically acceptable. This is especially relevant for market-based climate policy, where environmental objectives are pursued through price signals and therefore become closely linked to questions of cost, distribution and implementation. Their findings are relevant to CBAM, since the mechanism combines a regulatory design with the market-based logic of carbon pricing. Young et al. therefore support the broader point that climate instruments are legitimised not only through their environmental purpose, but also through how their economic and practical implications are presented.

Research further suggests that frames in EU climate governance are not static but change over time in response to broader political narratives and external pressures. This adds a temporal dimension to the argument above, namely that EU climate policy is framed through multiple concerns, but the relative importance of these concerns may shift over time. In early European Green Deal discourse, climate action was often framed in relatively transformative and “green” terms, placing environmental sustainability closer to the centre of the Union's political narrative (Schunz, 2022, p. 1). However, EU climate framing has remained plural rather than singular. Wennick's (2025, pp. 47-49) analysis of ideational shifts in EU climate policy suggests that climate governance is shaped by changing

understandings of growth, transition and political possibility. This reflects a broader trend in the literature, where scholars point to the growing importance of strategic and geopolitical rationales in the implementation of EU climate governance, including narratives centred on resilience, strategic positioning and external power (Prandin, 2025). This development reinforces the broader point that EU climate policy is legitimised through changing combinations of environmental, economic, strategic and external rationales. It is directly relevant to CBAM, which is formally presented as a climate instrument but operates through a trade-related design and raises questions of competitiveness, legal compatibility and fairness beyond the EU.

2.5 Research gap and contribution

As the literature reviewed above indicates, CBAM can be understood as a climate instrument operating in a governance space shaped by structural tensions between climate and trade. As the world's first operational carbon border adjustment mechanism, CBAM illustrates how carbon pricing can be extended beyond domestic or regional markets and justified at the border. Research on the climate-trade nexus highlights how climate objectives interact with trade principles and institutions that rest on different normative foundations (Dobson, 2023; Zelli et al., 2013; Gstöhl and Schunz, 2025). Similarly, CBAM scholarship demonstrates that the mechanism brings together partly competing aims, most notably carbon-leakage prevention, competitive equalisation, carbon-pricing diffusion and climate justice concerns, and that these dimensions do not necessarily align in either effects or political strategies (Smith et al., 2024; Corvino, 2026). While existing research has clarified important aspects of this complexity, much of it approaches CBAM through relatively discrete analytical perspectives, including economic modelling, assessments of legal and WTO compatibility and distributive impact analysis (Böhringer et al., 2022; Bellora and Fontagné, 2023; Bacchus, 2021; Perdana and Vielle, 2022; André and Pirlot, 2025; Delbeke and Vis, 2023; Pirlot, 2024). These contributions identify important expected consequences and constraints. However, comparatively little research examines how EU institutions frame and connect these competing rationales within the policy process. In particular, there is limited work that traces how climate, competitiveness and justice rationales are articulated together, aligned or held in tension across successive stages of the CBAM legislative process.

This gap is important because CBAM's governance complexity lies not only in what the instrument is expected to achieve, but also in how its underlying rationales are linked and rendered politically

workable. Framing research in EU governance provides a useful analytical basis for examining this process. Studies of EU policymaking emphasise that, in contested and cross-sectoral policy areas, where issues cut across established policy domains, institutional actors do not merely negotiate outcomes. They also construct policy problems and justify solutions by linking competing priorities in ways that render particular interventions legitimate (Saurugger, 2018; Daviter, 2018; Eising et al., 2015). Building on this insight, the present study examines how EU institutions frame and legitimise CBAM across key stages of the policy process, from the Commission's proposal in 2021 to adoption in 2023 and early revision in 2025. This responds to recent calls to move beyond single-lens assessments and examine how CBAM's multiple rationales interact within EU governance. In the case of CBAM, this raises the question of whether climate ambition functions as the mechanism's central organising rationale, or whether it is reframed through competitiveness, implementation and justice-related concerns in the process of legitimation. This thesis therefore analyses how climate, competitiveness and justice are articulated in relation to one another in official texts, and how climate ambition is positioned within a cross-sectoral governance framework at the climate-trade nexus. By tracing CBAM across successive stages of the EU policy process, the study makes an empirical contribution by showing how EU institutions articulate climate, competitiveness and justice rationales over time, rather than treating these dimensions as separate policy concerns. It also makes a conceptual contribution by demonstrating how framing theory can be used to analyse the legitimation of competing policy rationales within a single climate-trade instrument.

3 Theoretical framework

This chapter presents the theoretical framework that guides the analysis. It is grounded in a social constructivist approach to policy and uses framing theory to examine how CBAM is articulated and legitimised in EU policy documents. The chapter first outlines the social constructivist orientation of the study, then introduces framing theory as the main analytical lens, and finally presents the analytical framework used to identify and interpret frames in the empirical material.

3.1 Social constructivism in the study of climate policy

This study adopts a social constructivist lens to examine how CBAM is framed and legitimised within the climate-trade nexus. Social constructivism holds that political reality is shaped through intersubjective interpretation (Saurugger, 2018, p. 20). From this perspective, scholars reject the idea of a neutral reality that can be observed independently of interpretation. Instead, constructivist scholars direct attention to how ideas, discourse and communication shape political understanding and action, with discourse understood as a particular way of speaking about and understanding the world, or a section of it (Winther Jørgensen and Phillips, 2000, pp. 7, 10). The constructivist approach gained prominence in political science partly in response to the perceived limits of rationalist and materialist explanations in accounting for complex political processes and contested meanings (Jung, 2019, pp. 1-2). As such, analysing communication is central to social constructivist studies, since institutional texts provide insight into how policy issues are made salient and how certain interpretations are presented as meaningful within a policy process (Saurugger, 2018, pp. 20-22).

In policy analysis, this perspective has encouraged scholars to move beyond evaluating the effectiveness of implemented policies and instead examine how communication and interpretation shape the policy process itself (Saurugger, 2013, pp. 880-890). This is particularly relevant for climate policy, where policy problems are complex, causally uncertain and politically contested (Valentine et al., 2017, p. 624). Climate mitigation also involves long time horizons, indirect causal processes and effects that are difficult to capture through quantitative indicators alone (Levin et al., 2012). A social constructivist perspective therefore makes it possible to analyse how policy problems are interpreted, how particular priorities come to matter politically, and how policy choices are constructed as legitimate (Saurugger, 2013; Valentine et al., 2017, pp. 629-630). This is especially important in

intersecting policy fields, where climate objectives may compete with more immediate concerns such as competitiveness, trade constraints or administrative feasibility. In such contexts, climate objectives may become vulnerable to being reframed, narrowed or subordinated when they are integrated into policy areas shaped by other institutional priorities (Dupont, 2015, p. 16; Dupont and Oberthür, 2012, pp. 242-243).

This perspective is suitable for the study of CBAM because the instrument is politically contested and operates across climate and trade governance. CBAM is presented simultaneously through different rationales: as a climate measure, a response to carbon leakage, a means of preserving competitiveness and a mechanism with implications for fairness and third countries (Bellora and Fontagné, 2023; Perdana and Vielle, 2022; André and Pirlot, 2024; Corvino, 2026). Its legitimacy therefore depends not only on its expected effects, but also on how actors construct, reconcile and prioritise these rationales in policy documents. Adopting a social constructivist perspective makes it possible to analyse framing not as mere rhetoric, but as a constitutive element of policymaking that shapes what counts as an appropriate policy response and which claims gain authority within the policy process (Saurugger, 2018, p. 25; Eising et al., 2015, pp. 522-525). This is particularly suitable for a document-based analysis, as institutional texts both reflect and reproduce the meanings through which policy problems and solutions are made governable. CBAM is therefore not treated as an objective or neutral instrument. Rather, the study examines how political actors shape and justify it through meaning-making practices, and how their framing choices reflect particular interests, priorities and perceptions.

3.2 Framing theory

Framing theory provides the analytical lens through which this study examines how EU policy documents construct meaning. Rooted in constructivist policy analysis, framing theory is widely used in political science to analyse how policy issues acquire meaning within policy processes, and how this shapes which responses appear appropriate (Saurugger, 2018, p. 25; van Hulst and Yanow, 2016, pp. 92-94). Despite common formulations, the concept of a frame lacks a single agreed definition, yet several influential contributions have shaped its development. First introduced in the 1970s in association with the work of Goffman (1974), framing essentially referred to the “definition of a situation”, through which actors negotiate the meaning of people’s actions. Frames therefore provide insight into how actors perceive the social realities that inform their choices. Other significant

interpretations describe frames as “central organising ideas” that help actors make sense of events and complex issues (Gamson and Modigliani, 1989, p. 3). Rein and Schön’s (1977) adaptation of framing to policy research strengthened its analytical capacity by operationalising the ideas presented by Goffman into a more comprehensive framework for analysing how policy problems are constructed. They argue that framing occurs through three processes: naming, selecting and storytelling. These processes give a problem a name, select its features so it can be distinguished from others, and attach it to a broader story that binds the elements of the problem into a coherent and graspable pattern (Rein and Schön, 1977, p. 243; van Hulst and Yanow, 2016, pp. 96-97). As such, frames commonly refer to the selective emphasis of certain aspects of an issue, shaping what actors perceive to be at stake in a debate (van Hulst and Yanow, 2016, p. 94). However, one of the most applied conceptualisations in framing research stems from Entman (1993), who provides a more specific analytical framework. His understanding of frames builds on the foundational work of Goffman (1974) and Rein and Schön (1977) but clarifies more precisely how perceptions of social reality shape policy and how frames function within a text. Entman’s contribution is therefore particularly useful for this study, as it makes it possible to analyse not only which meanings are emphasised, but also what those meanings do in the construction and legitimation of policy.

In Entman’s approach, the framework is structured around four functions that identify what a frame does in a text: problem definition, causal interpretation, moral evaluation, and treatment recommendation (Entman, 1993, p. 52). Applied to CBAM, these functions make it possible to analyse not only which frames appear in the material, but also how climate, competitiveness and justice concerns contribute to the legitimation of the mechanism. These functions therefore provide the basis for the analytical framework used in this study. Table 1 translates these four framing functions into guiding questions used to assess and code frames in the empirical material.

Table 1. Entman's (1993) four framing functions and guiding questions

Framing functions:	Guiding questions:
Problem definition	What problem is the material addressing? How is the problem conceptualised?
Causal interpretation	What forces are determined to cause the problem according to the material?
Moral evaluation	Which actors are presented as responsible for causing the problem? Which actors are presented as responsible for addressing the problem?
Treatment recommendation	Which solutions are proposed and how are they justified in the text? What are the predicted effects of the solutions and how are they presented?

Source: Author's own construction, based on Entman (1993).

Entman specifically highlights that framing is fundamental to the exercise of political power. By detecting and critically assessing frames, researchers can identify the most prominent actors and interests represented in a text (Entman, 1993, p. 55). This gives frames influence over the process through which certain aspects of a text are presented. Accordingly, salience is a key concept in his framework (Entman, 1993, p. 53). Salience means that certain aspects of a text are made more noticeable, meaningful or memorable to audiences. In practice, this implies that frames may be identified not only through what is emphasised, repeated or given prominence, but also through what is downplayed or omitted. The analysis therefore considers both the presence and relative prominence of the four framing functions, as well as absences or inconsistencies between them (Entman, 1993, p. 53; Entman, 2003).

3.3 Analytical framework

While the previous sections have outlined the theoretical assumptions of the study, this section translates these concepts into the analytical framework used in the empirical analysis. Entman's (1993)

approach is therefore useful for this study, as it helps identify how CBAM is framed in the policy process, both through what is emphasised, repeated or given prominence and through what is downplayed or omitted. In addition to Entman's framework, framing literature also distinguishes between the occurrence of "strong" and "weak" frames. What becomes salient depends not only on the presence of a frame, but also on whether frames compete and on their relative strength. A rigorous framing analysis should therefore examine which rationales are foregrounded and which are marginalised, including how multiple rationales are combined or countered in texts (Chong and Druckman, 2007, p. 101).

This emphasis on salience also connects framing theory to the practices of legitimisation. Policy documents do not merely conceptualise problems or propose solutions. They also justify why particular policy choices should be regarded as appropriate within the policy process. This study operationalises legitimisation as the discursive justification of policy choices, through which actors construct a policy as credible, defensible and politically workable (van Leeuwen, 2007, pp. 91-92; Schmidt, 2008, pp. 303-305). In the analysis, legitimisation is identified through recurring justificatory claims that present CBAM as effective, legally sound, WTO-compatible, feasible, proportionate, fair or responsible. These claims are not treated as separate frames. Rather, they are understood as modes of justification that support, strengthen or qualify the broader climate, competitiveness and justice frames. This approach makes it possible to analyse how the rationales underpinning CBAM are constructed in EU policy documents, how climate objectives are positioned in relation to competitiveness and justice, and whether climate ambition functions as the central organising rationale or becomes dependent on other concerns (Entman, 1993, p. 53; Entman, 2003; Chong and Druckman, 2007, pp. 104-106, p. 111).

Table 2 illustrates the analytical framework used in the study. The three frame categories are literature-informed rather than derived directly from Entman's theory. They are based on previous CBAM research, which identifies climate effectiveness, competitive equalisation and justice concerns as central but partly competing rationales in the debate on CBAM (Smith et al., 2024; Corvino, 2026), as well as the European Commission's articulation of CBAM's intended objectives (European Commission, 2020). Although these studies do not necessarily conceptualise these rationales as frames, this study translates them into frame categories in order to analyse how they are constructed and legitimised in EU policy documents. Entman's four framing functions then structure the content of each frame by specifying how each rationale may appear as a problem definition, causal interpretation, moral evaluation or treatment recommendation. The content of the table is therefore not

a coding result, but an operationalisation that guides the empirical analysis. The framework is then used to assess not only whether these frames appear in the material, but also how salient they become in relation to one another across the policy process.

Table 2. Analytical framework for identifying CBAM frames

Entman's (1993) framing functions	Climate frame	Competitiveness frame	Justice frame
Problem definition	Carbon leakage threatens the effectiveness of EU climate policy and the credibility of EU climate ambition.	Uneven carbon costs create competitive asymmetries between EU and non-EU producers.	CBAM may impose uneven burdens across actors and trading partners, especially lower-capacity or vulnerable countries.
Causal interpretation	Uneven climate ambition and carbon constraints across jurisdictions create leakage risks as EU climate policy becomes more stringent.	Regulatory asymmetry distorts competition and may weaken support for domestic decarbonisation.	Differences in responsibility, development level, administrative capacity or structural dependence create unequal adjustment effects.
Moral evaluation	It is unacceptable for EU climate ambition to be undermined or for emissions to be displaced outside the Union.	Legitimate climate policy should not disadvantage EU industry relative to producers operating under weaker carbon constraints.	Legitimate climate policy should account for fairness, differentiated responsibility and unequal adjustment capacities.
Treatment recommendation	Extend the logic of EU carbon pricing to imports through CBAM, link it to the EU ETS, and preserve environmental integrity	Equalise carbon constraints between domestic and imported goods, ensure WTO compatibility, recognise carbon prices paid abroad	Address fairness through dialogue, technical assistance, recognition of third-country carbon pricing, proportional implementation and,

	through monitoring and reporting.	and maintain administratively workable rules.	where relevant, support for affected partners.
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Source: Author's own construction, based on Entman (1993) and previous research.

As framing theory suggests, several frames may coexist within a single policy document and vary in relative strength (Entman, 1993; Chong and Druckman, 2007, p. 101). As discussed in section 2, previous research on framing in EU policymaking has similarly shown that policy documents may contain multiple and partly overlapping frames, particularly in multi-actor policy contexts such as the EU, sometimes within the same document or within the same passage (Eising et al., 2015, pp. 522-531). For this reason, the study acknowledges that the justice rationale in CBAM may indicate framing both towards competitiveness and towards broader distributional justice for third parties. The study therefore distinguishes between two dimensions of justice. The justice frame is operationalised as references to fairness in the distribution and implementation of CBAM-related burdens. The first concerns internal fairness, understood as the equalisation of trade conditions between producers inside and outside the Union, corresponding to the rationale of “levelling the playing field” (Bellora and Fontagné, 2023; European Commission, 2021a). The second concerns external justice towards third countries, including differentiated responsibility, proportionality and unequal adjustment capacities (Perdana and Vielle, 2022; André and Pirlot, 2025; Corvino, 2026). In order to apply the framework in a methodologically systematic manner, the analysis acknowledges these distinctions and examines how justice is invoked in the policy documents.

4 Methodology and material

This chapter outlines the research design and the methodological choices of this study. It first presents the qualitative and interpretive research design, discussing the selection of material and the use of qualitative content analysis. The chapter then explains the coding procedure and concludes by outlining the limitations of the study.

4.1 Research design

The study aims to assess how EU institutions frame and legitimise CBAM in the EU policy process from 2021 to 2025, with particular attention to how climate ambition is positioned in relation to concerns of competitiveness and justice. By employing a longitudinal single-case study design, the study enables an analysis of the rationales underpinning CBAM across different phases of the policy process. Drawing on framing theory, it examines whether climate objectives function as the central organising rationale or are made dependent on concerns related to competitiveness and justice (Entman, 1993, p. 53; Entman, 2003; Chong and Druckman, 2007, pp. 101-102). A common criticism of single-case studies concerns limited generalisability, meaning that findings cannot easily be generalised to other cases (Bryman, 2016, p. 399). Although the findings apply specifically to this case, the study contributes through analytical generalisation by developing conceptually grounded insights into how frames and legitimisation logics operate in EU climate governance (Yin, 2018, p. 51).

To address the research purpose, the study adopts a qualitative and interpretive approach with a descriptive orientation. Rather than testing causal hypotheses, the analysis maps problem definitions and justificatory framings in order to generate context-sensitive insights that may inform future explanatory research (Teorell and Svensson, 2007, pp. 22-23). This orientation is particularly suitable for CBAM because the instrument is novel, and its longer-term effects on emissions, trade and behaviour will emerge beyond the study period. The thesis therefore focuses on how CBAM is constructed and justified in institutional texts rather than on measuring policy outcomes (Esaïasson et al., 2017, p. 38). By analysing official documents, the study traces how EU institutions deploy the climate, competitiveness and justice frames, and how cross-cutting legitimisation logics operate within and across these frames.

In an interpretive research design, the role of the researcher is central, since qualitative analysis requires the researcher to interpret the empirical material. Although document-based QCA relies on material that already exists and is therefore not shaped by interaction with the researcher, the interpretation of that material still requires reflexivity about the researcher's analytical choices and potential biases (Halperin and Heath, 2020, p. 374). To strengthen the validity of the study, the analysis follows the theoretical framework closely and maintains consistency between the theoretical concepts and their operationalisation (Esaiasson et al., 2017, pp. 106-107). This is achieved through the analytical framework presented in section 3.3, where Entman's framing functions are translated into guiding questions and applied to the three frame categories: climate, competitiveness and justice. Reliability and transparency are strengthened by defining the coding unit, documenting the coding procedure and using coding guidelines with rules and anchor examples, as outlined in section 4.3 and presented in Appendix II, Table 4 (Esaiasson et al., 2017, p. 58). Since framing analysis involves interpretive judgement, the analysis relies on official EU documents as primary sources and supports the main findings with direct quotations and precise references to the relevant documents. These measures allow the reader to follow how the empirical material has been interpreted and how the findings have been generated.

4.2 Material

In line with qualitative text-oriented approaches, the study relies on official documents as its primary empirical material. The selected material consists of nine documents produced within the CBAM legislative procedure by the EU's three main legislative institutions: the European Commission, the European Parliament and the Council of the European Union. The documents were selected because they represent key stages in the formal policy process. These include the 2021 Commission proposal and impact assessment, the positions of the Parliament and Council during the legislative procedure, the adopted Regulation in 2023, and the 2025 simplification proposal and amendment. The analysis focuses primarily on the core policy acts, including the proposal, the adopted regulation and subsequent amending acts, while supporting documents, such as impact assessments and institutional positions, are used to contextualise and clarify the institutional framing of CBAM across the legislative procedure. To identify material linked to the legislative procedure, the study used targeted keyword searches, including "Carbon Border Adjustment Mechanism" and "CBAM", to locate relevant documents within official EU sources. The selected documents were retrieved from official EU

sources, including EUR-Lex, the Council document register, the European Parliament's legislative database and official European Commission webpages.

Textual material is useful for analysing how political issues are articulated, interpreted and made meaningful, because a constructivist approach to text analysis treats language as central to the construction of social and political meaning (Bergström and Boréus, 2018, p. 27). EU policy documents are therefore appropriate for examining how CBAM is constructed and legitimised, including how climate objectives are promoted, balanced or downplayed in relation to trade and fairness concerns. As official institutional texts, the selected documents constitute authoritative expressions of problem definitions, justificatory narratives and proposed solutions, and therefore provide access to the meanings advanced in the legislative process. A further advantage is that documents are not shaped by interaction with the researcher, unlike interviews or surveys, and they allow for systematic examination of the issue under analysis (Bowen, 2009, p. 31).

At the same time, reliance on public documents may entail limitations. Documents cannot provide full insight into informal negotiations, internal deliberations or how decisions were reached behind closed doors (Bryman, 2016, p. 561). This study addresses this limitation by treating the documents not as transparent windows into internal processes, but as institutional texts through which actors communicate and legitimise positions. This is analytically consistent with a framing approach, since framing concerns how texts represent and make issues politically meaningful through selection, emphasis and omission (Entman, 1993, p. 53). The selected material therefore provides a suitable basis for tracing how CBAM is framed in official EU policy documents, including how competing rationales are foregrounded, balanced or downplayed as the mechanism is developed and revised. The material used in the study is listed in Appendix I, Table 3.

4.3 Qualitative content analysis

Frame analysis is often treated as an analytical approach rather than a method in itself, which means that frame analysts typically rely on established methods such as discourse analysis or content analysis. In research on policy processes, content analysis has emerged as a common methodological choice because it supports the systematic identification of interpretive patterns across larger bodies of text (Eising et al., 2015, pp. 516-517; Bergström and Kohl, 2018, p. 51). This study uses qualitative content analysis (QCA) as it allows the identification of recurring framing patterns across multiple documents

while remaining sensitive to contextual meaning. This is particularly relevant here, since the study examines how EU institutions frame and legitimise CBAM across different policy phases and institutional documents. The longitudinal design further makes it possible to trace how these framings develop over time across the proposal, adoption and early revision phases of CBAM (Bergström and Boréus, 2018, p. 24).

QCA also offers a suitable balance between interpretive depth and analytical structure. Discourse analysis would have enabled a more detailed analysis of linguistic practices, but it would also have required a narrower empirical focus and greater textual granularity (Winther Jørgensen and Phillips, 2000, p. 10). Because this study analyses several documents across the CBAM policy process, QCA is more appropriate for its purpose. Unlike quantitative content analysis, which is primarily concerned with manifest content, QCA allows the researcher to interpret underlying meanings and broader patterns in the material (Halperin and Heath, 2020, pp. 276-277). However, content analysis may still risk privileging manifest content, quantification or decontextualised textual units (Bergström and Boréus, 2018, p. 79). This study addresses that risk by applying QCA in an interpretive manner, consistent with framing theory's emphasis on salience, selection, emphasis and omission (Entman, 1993, p. 53).

Although qualitative content analysis does not follow a single standardised procedure, it is guided by systematic and rule-based techniques that can be adapted to the purpose of the study (Mayring, 2015, p. 370). The coding procedure in this study was therefore guided by Halperin and Heath's (2020, pp. 376-384) steps for qualitative content analysis and by Mayring's (2015; 2022) approach to deductive and inductive category development. The coding combined deductive and inductive elements. Entman's four framing functions provided the deductive analytical structure: problem definition, causal interpretation, moral evaluation and treatment recommendation. The three overarching frame categories, climate, competitiveness and justice, were also established before coding, based on the research question and previous CBAM scholarship. Within these categories, the analysis remained open to inductively identified sub-patterns and legitimation logics, including administrative feasibility, simplification, proportionality, WTO compatibility and climate diffusion.

The analysis first involved familiarisation with the selected material. Each document was read with attention to passages where CBAM's purpose, problem definition, expected effects, design choices or justification were discussed. This included explanatory memoranda, recitals, articles and relevant parts of the impact assessment. These sections were prioritised because they contain the clearest statements of how CBAM is presented as necessary, appropriate or legitimate within the policy process.

The coding then proceeded in two rounds. In the first round, passages were coded according to Entman's four framing functions and the three main frame categories. For instance, a passage defining carbon leakage as a threat to EU climate ambition was coded under the climate frame and the problem definition function. A passage explaining that unequal carbon costs may place EU producers at a disadvantage was coded under the competitiveness frame and the causal interpretation function. A passage referring to dialogue with third countries, technical assistance or recognition of carbon prices paid abroad was coded under the justice frame, particularly where it addressed external fairness or differentiated capacities.

In the second round, the coding was refined by identifying recurring sub-patterns and modes of legitimisation across the material. This inductive refinement made it possible to capture patterns specific to the CBAM policy process, including WTO compatibility, administrative feasibility, proportionality, simplification and climate diffusion, in line with Mayring's understanding of inductive category development (Mayring, 2022, pp. 81-82, 93-94). It also made it possible to distinguish, for example, between competitiveness as a level-playing-field logic, WTO compatibility as a legal legitimisation logic, and administrative feasibility as an implementation-related legitimisation logic. Similarly, the justice frame was refined by distinguishing between internal fairness and external fairness. Internal fairness referred to equal competitive conditions, proportional administrative burdens, SME concerns and avoidance of double charging. External fairness referred to dialogue, technical assistance, recognition of third-country carbon pricing and concern for affected third countries.

The coding unit was a thematically coherent passage rather than a fixed textual unit. A coding unit could therefore consist of a sentence, several sentences, a recital or a paragraph, depending on where a distinct framing function or legitimating claim appeared (Halperin and Heath, 2020, pp. 378-379). This was appropriate because the study analyses how meaning is constructed across policy texts, not only through isolated words or phrases. The policy document served as the context unit, meaning that individual passages were interpreted in relation to the broader document, the institutional source and the phase of the policy process.

Passages could receive more than one code when they contained overlapping rationales. This was important because CBAM is a cross-sectoral instrument in which climate, competitiveness and justice concerns often appear together. For example, a passage stating that imported products should bear a carbon price comparable to EU products was coded as competitiveness because it referred to equal competitive conditions. At the same time, it was also coded as climate-related when the passage linked equalisation to the prevention of carbon leakage. Similarly, references to WTO compatibility were

coded as part of the competitiveness frame when they presented CBAM as non-discriminatory and rule-based, but also as a mode of legitimation because they justified the mechanism as legally acceptable.

After coding the documents, the analysis compared how the three frames appeared across the policy phases. This comparison focused on which frames were foregrounded, which were secondary, and how the legitimating logics changed over time. The phase-specific analysis in sections 5.1-5.3 therefore examines the 2021 proposal, the 2023 adopted Regulation and the 2025 simplification amendment separately. Sections 5.4 and 5.5 then compare the cross-phase patterns and assess how climate ambition is positioned in relation to competitiveness and justice.

To strengthen transparency, the coding guidelines used to apply the analytical framework are presented in Appendix II, Table 4. The coding guide specifies the coding labels, coding rules and anchor examples used to identify the climate, competitiveness and justice frames in the empirical material. The cross-cutting modes of legitimation identified during the coding process are presented in Appendix III, Table 5. These modes do not constitute separate main frames, but specify how particular framings are justified, for instance through appeals to WTO compatibility, proportionality, legal certainty, ETS coherence and simplification.

4.4 Limitations

The analysis is limited by its focus on the formal legislative process of CBAM, from the Commission's proposal in 2021 to the early revision phase in 2025. This period captures the main stages in which the mechanism was formally proposed, negotiated, adopted and revised, but a wider temporal scope could have revealed additional shifts in how CBAM was framed and justified, particularly in earlier debates and preparatory discussions preceding the legislative proposal. Since the study ends before the definitive regime has been fully implemented, it also cannot assess whether the framings identified in the policy documents correspond to CBAM's later effects in practice. The empirical material is limited to official policy documents produced by EU institutions, which is appropriate for analysing formal institutional framing and legitimation, but also narrows the actor perspective of the study. The analysis therefore does not capture how CBAM is framed, received or contested by third countries, international organisations, industry associations, civil society actors or affected exporters. Including such material could have provided further insight into how CBAM's legitimacy is interpreted beyond the EU policy

process, particularly in relation to competitiveness and fairness. Finally, the analytical framework shapes the scope of the findings. The selected frames are based on previous scholarship on CBAM and are well suited to examining how climate objectives are positioned in relation to competitiveness and justice. However, a different framing strategy might have identified other dimensions of CBAM's legitimation, such as geopolitical, strategic or external power frames (Mishra, 2025; Prandin, 2025). The findings should therefore be understood as an analysis of how three central rationales in the CBAM debate are constructed, combined and legitimised in official EU policy texts, rather than as an exhaustive account of all possible framings or political discourses surrounding the mechanism.

5 Analysis and results

This chapter presents the empirical analysis and results of the study. To trace how the climate, competitiveness and justice frames appear across the CBAM policy process, the chapter presents the findings chronologically. The analysis applies Entman's (1993) four framing functions: problem definition, causal interpretation, moral evaluation and treatment recommendation. These functions organise the narrative of each phase rather than coding each document into twelve separate categories. This allows the chapter to remain analytically focused while still capturing how legitimising claims operate within and across the climate, competitiveness and justice frames. The chapter first examines the Commission's 2021 proposal and impact assessment, then the adopted Regulation in 2023, and finally the 2025 simplification amendment. It then synthesises the main cross-phase patterns and discusses how climate ambition is positioned in relation to competitiveness and justice.

5.1 The European Commission proposal (2021)

The European Commission's 2021 proposal establishes carbon leakage as the central problem that CBAM is intended to address. In Entman's terms, the problem definition is closely connected to the climate frame: carbon leakage is presented as a threat to the effectiveness of EU climate ambition. The Commission introduces CBAM as part of the Fit for 55 package, which aimed to revise EU policy instruments in line with the Union's increased 2030 climate target and the objective of climate neutrality by 2050 (European Commission, 2021a, p. 1). This situates CBAM within the EU's broader effort to align its policy framework with increased climate ambition:

To deliver on these GHG emissions reductions in line with the European Climate Law, the Commission proposes to revise where necessary all relevant policy instruments by July 2021 in a 'Fit for 55 Package' [...]. A carbon border adjustment mechanism ('CBAM'), announced in the European Green Deal, is part of that package and will serve as an essential element of the EU toolbox to meet the objective of a climate-neutral EU by 2050 in line with the Paris Agreement by addressing risks of carbon leakage as a result of the increased Union climate ambition.

(European Commission, 2021a, p. 1)

This formulation defines CBAM primarily as a climate-policy instrument. The Commission does not frame the problem as general trade competition, but as the risk that increased EU climate ambition may be undermined if emissions-intensive production shifts outside the Union, or if imports produced under weaker carbon constraints replace domestic production. Carbon leakage thus becomes the specific problem through which the broader climate objective is made governable.

The impact assessment reinforces this problem definition by linking carbon leakage to the urgency of climate change. It describes climate change as a serious and pressing threat, stating that “the world is facing a profound climate crisis” requiring a global response (European Commission, 2021a, p. 3). This language gives the problem definition a strong climate orientation, suggesting CBAM is framed not simply as an adjustment to trade conditions, but as part of the EU’s response to the risks created by more ambitious climate policy in an uneven international context.

The Commission then attributes the risk of carbon leakage to uneven carbon constraints across jurisdictions, combined with the EU’s strengthened decarbonisation agenda. The causal interpretation therefore rests on the gap between increased EU climate ambition and weaker or less comparable climate policies elsewhere. The impact assessment states that, although “in an ideal world all countries would put in place the measures necessary to phase out fossil fuels in a fair and effective manner”, this is not the current reality (European Commission, 2021a, p. 26). CBAM is therefore framed as necessary because EU climate policy operates in an international context where carbon costs remain uneven. This causal interpretation is made explicit in the impact assessment:

The EU has set ambitious targets in line with preventing dangerous climate change, and among other measures has put in place a carbon pricing system, through the EU ETS, to achieve its targets in as cost effective manner as possible. However, in order to achieve its targets, the EU must also ensure that its efforts at home do not lead to emissions increases elsewhere through the risk of carbon leakage. A CBAM that ensures that covered imported products bear a comparable carbon price to domestically produced products will help manage that risk.

(European Commission, 2021a, p. 26)

This passage highlights how the climate and competitiveness frames are connected through the causal interpretation of carbon leakage. Carbon leakage functions as the central problem definition, while competitiveness enters the analysis by explaining why that problem may occur: uneven carbon costs create competitive asymmetries that may lead to emissions displacement. In this way, competitiveness does not replace the climate frame but supports it by making CBAM appear as the appropriate response to a climate problem generated by unequal regulatory conditions.

The Commission also develops a second causal claim by linking CBAM to the limitations of existing leakage protection within the EU ETS. While free allocation has previously been used to prevent carbon leakage, the Commission argues that it “weakens the carbon price signal for EU industry compared to full auctioning”. CBAM is therefore framed as an alternative that would ensure that “the price of imports reflects more accurately their carbon content” (European Commission, 2021a, pp. 3-4). This shifts the justification of CBAM from external regulatory asymmetry alone to the internal coherence of EU carbon pricing. In this framing, CBAM appears as a more environmentally coherent alternative to free allocation, rather than simply as a border adjustment. This claim is further supported in the impact assessment, by suggesting that previous evidence of limited competitiveness effects may reflect the relatively low stringency and “small effects” of earlier climate policies, while the “threat posed by climate change” requires policies beyond past experience (European Commission, 2021a, p. 8).

Entman’s distinction between problem definition and causal interpretation is useful here because it illustrates that the Commission does not only identify carbon leakage as a threat, but it also constructs a causal chain in which uneven carbon costs and the limits of free allocation make CBAM appear necessary. The climate frame is therefore strengthened through competitiveness and ETS coherence: CBAM is presented as necessary because EU climate ambition operates in a context of unequal carbon constraints, while existing leakage protection is portrayed as insufficient for maintaining a strong carbon price signal.

The impact assessment also acknowledges that CBAM may generate distributional effects within EU value chains. It notes that some downstream producers, including sectors such as household appliances, vehicles and food, may be “worse off” because they face higher input prices under CBAM (European Commission, 2021b, p. 62). However, this concern remains secondary in the Commission’s framing. It does not displace the central problem definition of carbon leakage, nor does it alter the causal interpretation built around uneven carbon costs and the limits of free allocation. Instead, the Commission continues to give greater weight to leakage prevention and the safeguarding of climate

ambition than to downstream cost concerns. This prioritisation also carries a normative dimension, which becomes clearer in the proposal's moral evaluation of carbon leakage as a threat to EU climate ambition.

Turning to moral evaluation, the proposal gives carbon leakage normative significance by linking it to the prevention of “dangerous climate change” and to the risk that EU mitigation efforts may be undermined (European Commission, 2021a, p. 26; European Commission, 2021b, p. 2). Leakage is therefore not framed merely as an economic inconvenience or a competitiveness problem, but as a normative threat to the credibility and effectiveness of EU climate action. The proposal states:

That would risk undermining the effectiveness of the EU's emission mitigation policies, and could also lead to an increase in their total emissions globally, thus jeopardising the reduction of GHG emissions that is urgently needed if the world is to keep the global average temperature to well below 2°C above pre-industrial levels.

(European Commission, 2021b, p. 2)

Through terms such as “dangerous climate change”, “undermining” and “jeopardising”, the Commission assigns carbon leakage clear normative significance. More ambitious EU climate policy should not result in emissions increases elsewhere. Action against leakage is therefore constructed as necessary to preserve both the credibility of EU climate ambition and the effectiveness of global mitigation efforts.

At the same time, the moral evaluation contains a weaker justice dimension. The impact assessment recognises that CBAM may generate uneven effects across third countries, particularly least developed countries (LDCs) and lower capacity economies and it raises the possibility of technical assistance and gradual phase in arrangements. For instance, it notes that “to ease the transition, a gradual phasing in of the CBAM could be considered for existing production capacities in LDCs” (European Commission, 2021a, p. 30). This indicates that the Commission acknowledges external fairness concerns, especially in relation to differentiated capacity and adjustment burdens. However, these concerns do not define the central moral evaluation of CBAM. They appear primarily as mitigating measures, while the dominant normative claim remains that carbon leakage must be prevented because it threatens EU and global climate objectives.

The Commission's treatment recommendation is a harmonised EU-level regulation that extends the logic of EU carbon pricing to imports. CBAM is presented as a corrective instrument designed to ensure that imported goods bear a carbon cost comparable to that faced by domestic production. The impact assessment makes this equalisation logic explicit:

This is dictated by the motivation behind the measure, namely to ensure that imports of energy intensive products into the EU are on equal footing with EU products in terms of EU ETS carbon pricing, and to mitigate risks of carbon leakage.

(European Commission, 2021a, p. 21)

This recommendation combines the climate and competitiveness frames. CBAM is justified in means to protect climate ambition, but the solution operates through competitive equalisation. The mechanism is therefore not framed as a trade restriction, but as a way to align the treatment of imported goods with the EU's internal carbon-pricing system.

The proposal also addresses the external dimension of CBAM through dialogue and cooperation with affected third countries:

Moreover, the EU will engage with third countries whose trade to the EU is affected by this Regulation to explore possibilities for dialogue and cooperation with regard to the implementation of specific elements of the Mechanism. It should also explore possibilities for concluding agreements to take into account their carbon pricing mechanism.

(European Commission, 2021b, p. 3)

This passage introduces a procedural understanding of external fairness. The Commission recognises that affected third countries should be engaged and that their carbon pricing systems may be taken into account. However, the wording remains cautious. The proposal refers to dialogue, cooperation and possible recognition, but it does not make redistribution, exemption or compensation central to the

design of CBAM. Justice therefore appears as a limited and procedural concern rather than as a governing rationale.

5.2 The adopted Regulation (EU) 2023/956 (2023)

Compared with the Commission's 2021 proposal, the adopted Regulation maintains carbon leakage as the central problem definition while broadening the framing of CBAM. It links leakage more explicitly to the Union's global emissions footprint, climate leadership, WTO compatibility, administrative workability and international cooperation. In Entman's terms, the Regulation preserves the original climate frame, but strengthens the legitimating basis of CBAM by connecting climate effectiveness to legal, procedural and cooperative forms of justification.

This continuity is visible in Article 1, which states that the mechanism is established "in order to prevent the risk of carbon leakage, thereby reducing global carbon emissions and supporting the goals of the Paris Agreement" (European Parliament and Council, 2023, Article 1). The provision confirms that CBAM is defined primarily as a climate measure rather than as a trade or industrial policy instrument. The problem is not simply that EU producers face competitive pressure, but that carbon leakage may undermine the effectiveness of EU climate policy and weaken global emissions reduction.

The regulation deepens this problem definition by linking leakage to the Union's consumption-based emissions footprint. Recital 8 states:

While the Union has substantially reduced its domestic greenhouse gas emissions, the greenhouse gas emissions embedded in imports to the Union have been increasing, thereby undermining the Union's efforts to reduce its global greenhouse gas emissions footprint. The Union has a responsibility to continue playing a leading role in global climate action.

(European Parliament and Council, 2023, Recital 8)

Compared with the 2021 proposal, the adopted Regulation therefore frames carbon leakage not only as a threat to internal policy effectiveness, but also as a problem for the Union's broader climate

responsibility. The language of “undermining” gives the problem a stronger normative and strategic dimension, as embedded emissions in imports are presented as weakening the EU’s global mitigation efforts. Recital 9 reinforces this framing by stating that, as the Union increases its climate ambition, the risk of carbon leakage could “undermine the effectiveness of Union emission reduction policies” (European Parliament and Council, 2023, Recital 9). In Entman’s terms, the adopted Regulation maintains carbon leakage as the central problem, but attaches broader significance to it. Leakage is framed as a risk to climate effectiveness, the EU’s global emissions footprint and the credibility of EU climate leadership.

The causal interpretation remains closely connected to regulatory asymmetry. The adopted Regulation presents carbon leakage as a risk that arises because EU producers face carbon constraints that are not necessarily matched by producers in third countries. This carries forward the causal logic of the Commission’s proposal: uneven carbon constraints create incentives for emissions-intensive production or consumption to shift outside the Union. However, the adopted Regulation gives this causal interpretation a stronger legal dimension. Recital 15 presents CBAM as a climate measure designed to reduce global greenhouse gas emissions and prevent carbon leakage, while ensuring compatibility with WTO law (European Parliament and Council, 2023, Recital 15). Legal compatibility therefore becomes part of the mechanism’s legitimation. CBAM must be framed not only as environmentally necessary, but also as rule-based and non-discriminatory.

This framing is supported in the Council’s general approach. The Council presents CBAM as a mechanism that should ensure that imported products are subject to carbon costs equivalent to those that would have applied under the EU ETS. It describes CBAM as “a climate measure” intended to prevent carbon leakage and support the Union’s increased climate ambition, while also “ensuring WTO compatibility” (Council of the European Union, 2022, p. 7). The Council therefore does not redefine the central problem. Rather, it reinforces the conditions under which CBAM can be legitimised: the mechanism must preserve climate effectiveness while remaining legally defensible and compatible with trade rules.

The adopted Regulation also links causality to design and implementation. Several recitals suggest that CBAM’s effectiveness depends on methodological precision and administrative feasibility. For instance, Recital 19 states that the methodology for calculating indirect emissions should be further specified “in order to achieve the most appropriate way to prevent carbon leakage and ensure the environmental integrity of the CBAM” (European Parliament and Council, 2023, Recital 19). Similarly, Recital 22 explains that specific design features, including the calculation of certificate

prices and the period of validity of certificates, are necessary “to preserve the effectiveness of the CBAM as a measure to prevent carbon leakage over time” (European Parliament and Council, 2023, Recital 22). These recitals show that technical design is not framed as a purely administrative issue. Rather, methodological precision and institutional design are presented as conditions for maintaining CBAM’s climate function.

Entman’s distinction between causal interpretation and treatment recommendation is useful here because the Regulation does not merely identify unequal carbon constraints as the cause of leakage. It also constructs legal compatibility, environmental integrity and administrative workability as necessary conditions for CBAM to function as an effective climate measure. The causal logic is therefore broadened: CBAM’s effectiveness depends not only on addressing external carbon-cost asymmetries, but also on designing the mechanism in a way that preserves its environmental purpose over time.

The Regulation also introduces a clearer causal logic related to administrative burden. Recital 22 states that the management of the CBAM system should not be “excessively burdensome” for operators or competent authorities and notes that this is particularly important for Small and medium-sized enterprises (SMEs) (European Parliament and Council, 2023, Recital 22). Recital 25 further explains that, because CBAM applies to imports rather than installations, “adaptations and simplifications” are necessary. It introduces a “simple and accessible declarative system” and adjusts the compliance cycle to avoid bottlenecks for accredited verifiers (European Parliament and Council, 2023, Recital 25). Recital 41 similarly justifies limited exemptions from CBAM obligations “in order to avoid excessive administrative burden” for customs authorities and importers (European Parliament and Council, 2023, Recital 41). This administrative logic does not replace the climate frame. Instead, it supports it by suggesting that CBAM must remain workable in order to function effectively.

The moral evaluation is further developed through a stronger emphasis on responsibility, leadership and global decarbonisation. Recital 8 frames the Union not merely as responding to a policy-design problem, but as having “a responsibility to continue playing a leading role in global climate action” (European Parliament and Council, 2023, Recital 8). This gives the climate frame a stronger normative basis than in the 2021 proposal. Preventing carbon leakage is not only necessary to protect EU policy effectiveness but is also presented as part of the EU’s responsibility as a climate leader.

The Regulation also extends the moral justification of CBAM beyond leakage prevention by introducing a clearer decarbonisation-diffusion logic. Recital 10 states that CBAM is expected to

“contribute to promoting decarbonisation in third countries”, while Recital 14 adds that it is expected to support the reduction of greenhouse gas emissions in third countries (European Parliament and Council, 2023, Recitals 10 and 14). These additions broaden the normative claim. CBAM is framed not only as a defensive instrument that protects EU climate ambition from leakage, but also as an instrument that may encourage emissions reductions beyond the Union. The adopted Regulation therefore presents CBAM as externally transformative as well as internally protective. This strengthens the climate frame by linking the mechanism to global decarbonisation and carbon-pricing diffusion.

The moral evaluation also includes an internal fairness dimension. Recital 17 introduces a justice-oriented claim centred on economic and social cohesion, stating that future revisions should take account of “the special characteristics and constraints of the outermost regions” (European Parliament and Council, 2023, Recital 17). This indicates that the Regulation moralises the transition not only as an emissions-reduction project, but also as one that should avoid uneven burdens within the EU’s territory. However, this justice claim remains limited. It does not redefine the main purpose of CBAM but adds a qualification concerning cohesion and differentiated internal conditions.

The treatment recommendation is more developed than in the 2021 proposal. The Regulation does not merely recommend establishing CBAM. It also specifies how the mechanism should be designed to remain effective, legally robust, administratively workable and internationally cooperative. Recitals 19 and 22 connect methodological precision, certificate pricing and administrative design to the prevention of carbon leakage and the environmental integrity of the mechanism. The recommendation is therefore not only to extend carbon pricing to imports, but to do so through rules that preserve CBAM’s climate function.

The Regulation also recommends administrative simplification and proportionality as conditions for implementation. Recitals 22, 25 and 41 justify design adaptations, simplified declaration systems and exemptions from obligations in order to avoid excessive administrative burden, particularly for SMEs and competent authorities (European Parliament and Council, 2023, Recitals 22, 25 and 41). This reinforces administrative feasibility as a supporting legitimisation logic. CBAM must be ambitious enough to prevent leakage, but also workable enough to be implemented effectively.

Finally, the Regulation translates the external dimension of CBAM into a cooperative governance response. Recital 71 requires the Commission to engage “in an even-handed manner” with affected third countries, explore agreements that take account of third-country carbon pricing systems and provide technical assistance to developing countries and LDCs (European Parliament and Council,

2023, Recital 71). This recital introduces an external fairness dimension into the adopted Regulation. It frames CBAM's legitimacy as partly dependent on dialogue, cooperation and recognition of different circumstances.

However, this justice frame remains procedural rather than redistributive. Recital 71 does not exempt developing countries or compensate them for CBAM-related costs. Instead, it addresses fairness through engagement, technical assistance and recognition of equivalent carbon-pricing mechanisms. Justice is therefore present, but it is treated as a limited and procedural condition rather than as the governing logic of CBAM. Recital 72 further embeds CBAM within an international cooperation framework by recommending bilateral, multilateral and international cooperation with third countries, including through a voluntary and non-exclusive "Climate Club" forum. The recital presents cooperation as a way to promote ambitious climate policies across jurisdictions and to "pave the way for a global carbon pricing framework" (European Parliament and Council, 2023, Recital 72). Rather than presenting CBAM solely as a unilateral border measure, the Regulation links it to dialogue, coordination, monitoring, reporting and verification. At the same time, the focus remains procedural: the Regulation emphasises transparency, engagement and comparability, but does not commit to redistribution or compensation.

5.3 Simplification amendment regulation (2025)

The 2025 simplification amendment recalibrates the framing of CBAM without replacing its original climate rationale. Regulation (EU) 2025/2083 amends Regulation (EU) 2023/956 by simplifying aspects of implementation and administration. This amendment therefore provides an empirical context for analysing how CBAM continued to be framed and legitimised during its early revision phase. In Entman's terms, the amendment maintains carbon leakage as the underlying problem, but expands the problem definition to include administrative burden and implementation complexity. Climate ambition remains central, yet the mechanism is increasingly legitimised through feasibility, proportionality and administrative workability.

The problem definition in the 2025 material continues to rest on carbon leakage and the protection of EU climate policy. However, the Commission adds a second problem: the existing implementation model is presented as administratively complex and potentially burdensome for importers, businesses and authorities. The proposal therefore frames simplification as compatible with, and even necessary

for, the continued effectiveness of CBAM. The Commission states that the proposal will deliver “simplifications and cost-efficient improvements” without affecting the achievement of CBAM’s objectives, and that the proposed measures “will not undermine the environmental objective of CBAM” but instead enable “a more efficient CBAM” while keeping the key design principles unchanged (European Commission, 2025a, p. 1).

This formulation is central to the 2025 framing. The Commission does not present simplification as a reduction of climate ambition. Rather, it frames administrative simplification as a way to preserve CBAM’s environmental objective while making the mechanism more efficient. The problem is therefore no longer only that carbon leakage may undermine EU climate ambition, but also that excessive administrative complexity may hinder effective implementation. The Commission reinforces this problem definition by linking complexity and data requirements to implementation challenges, stating that the proposal will make compliance easier by simplifying reporting requirements that rely on “complex calculations and data collection processes” which would otherwise “hamper the CBAM’s effective implementation” (European Commission, 2025a, p. 1). Administrative burden is therefore reframed as a problem for climate policy itself. If reporting obligations become too complex, compliance may become more difficult, and CBAM’s implementation may be weakened. Administrative feasibility thus becomes part of the conditions through which the climate frame is stabilised.

The causal interpretation follows this expanded problem definition. The 2025 material does not attribute implementation challenges only to uneven international carbon constraints, but also identifies the design and application of CBAM obligations as potential sources of difficulty. Complex procedures, data requirements and reporting obligations are framed as generating unnecessary compliance costs, particularly for smaller or occasional importers. The Council’s general approach reflects this logic when it justifies simplified default values as a response to data constraints while preserving the leakage-prevention function of CBAM:

It is also necessary to simplify the means for determining default values when reliable data for the exporting country would not be available for a certain type of goods. In such cases, to prevent carbon leakage, the default value should be set at the level of the average emission intensity of the ten exporting countries with the highest emission intensities for

which reliable data is available, which is an appropriate average to ensure the environmental objective of the CBAM.

(Council of the European Union, 2025a, p. 18)

This suggests a relatively conservative approach to simplification. By setting the default value at the average emission intensity of the ten highest-emitting exporting countries with reliable data, the rule is likely to produce a relatively high benchmark. The approach appears designed to avoid underestimating embedded emissions when country-specific data are missing, thereby protecting CBAM's environmental integrity and leakage-prevention function. At the same time, a high default value may have distributive implications, since producers with lower actual emissions but limited capacity to document them could face higher implied emissions and costs. In this sense, simplification is framed as administratively necessary while remaining tightly anchored to the climate integrity rationale. Entman's distinction between causal interpretation and treatment recommendation is useful here because the 2025 material does not merely identify administrative complexity as a problem. It also constructs a causal link between data limitations, compliance burdens and potential implementation failure, thereby making simplification appear necessary for preserving CBAM's environmental function.

Turning to moral evaluation, the 2025 amendment introduces a stronger proportionality logic. Simplification, burden reduction and cost-efficiency are framed as legitimate objectives as long as the environmental integrity of CBAM is preserved. The Commission states that the simplification of administrative and reporting requirements "does not affect the substance of the policy objectives" (European Commission, 2025a, p. 3). This presents simplification as normatively acceptable because it does not change the substance of CBAM's objectives. The moral evaluation therefore rests on a balance between climate integrity and proportionality. Administrative burdens should be reduced, but not in a way that undermines the mechanism's environmental purpose.

The competitiveness frame also becomes more visible in the 2025 material. The Commission situates the revision within a broader EU agenda of regulatory simplification, competitiveness and resilience, including references to the Draghi report and the need to reduce burdens for businesses (European Commission, 2025a, p. 1). At the same time, the Commission stresses that administrative requirements remain important for enforcement and monitoring, noting that they "play a key role in ensuring correct enforcement and proper monitoring of legislation" and that their costs are generally offset by the

benefits they bring (European Commission, 2025a, p. 1). This illustrates the normative balance underpinning the 2025 amendment. Administrative requirements are necessary for enforcement, but they must remain proportionate to the benefits they produce. The amendment therefore does not reject regulation; rather, it frames legitimate regulation as regulation that is effective, enforceable and proportionate.

This proportionality logic is particularly visible in the Commission's claim that simplification can reduce burdens substantially while preserving emissions coverage. The proposal states that simplification is expected to exempt around "90% of importers" from CBAM obligations while maintaining "more than 99% of embedded emissions" within the scope of CBAM, thereby safeguarding the environmental nature of the mechanism (European Commission, 2025a, p. 5). This passage is central to the 2025 framing. It operationalises environmental integrity in terms of emissions coverage, while presenting burden reduction as compatible with the mechanism's climate purpose. In this phase, effectiveness is therefore framed through selectivity: CBAM can remain environmentally meaningful while exempting many importers, provided that most embedded emissions remain within scope.

The treatment recommendation is to maintain CBAM's climate purpose while redesigning administrative and compliance requirements so that the mechanism becomes more workable and proportionate. The recommended treatment is not to transform CBAM's objective, but to target obligations more precisely, simplify reporting and default values, reduce compliance costs and preserve effective enforcement. In this sense, the 2025 amendment presents simplification as a condition for implementation capacity rather than as a retreat from climate ambition. The Council's position supports this treatment recommendation by emphasising reductions in regulatory and administrative burden, particularly for SMEs and smaller importers. Rather than challenging the climate purpose of CBAM, this framing presents simplification as necessary to make implementation feasible in practice. Administrative feasibility therefore becomes a central supporting legitimisation logic in the early revision phase.

The amendment also frames fairness primarily through proportionality. Deductions for carbon prices paid in third countries are presented as safeguards against double charging, while simplified procedures reduce administrative burdens for businesses and public authorities. In addition, the amending text requires penalties to be effective, proportionate and dissuasive, reinforcing proportionality as a key standard of legitimacy. Fairness is therefore articulated less as distributive justice and more as procedural and administrative proportionality. Compared with the 2021 proposal

and the 2023 Regulation, the 2025 amendment narrows the justice frame further towards implementation fairness rather than external redistributive commitments.

5.4 Cross-phase patterns in the framing and legitimization of CBAM

Across the three policy phases, the analysis identifies a pattern of continuity and recalibration in how CBAM is constructed as a policy response. Rather than replacing one frame with another, the material preserves carbon leakage as the central reference point while gradually expanding the conditions through which CBAM is legitimised. Entman's four framing functions provide an analytical basis for tracing this development, as they distinguish between how carbon leakage is defined as a policy problem, how its causes are constructed, how action is normatively justified, and how particular design choices are presented as appropriate responses.

In the 2021 proposal, carbon leakage is framed primarily as a threat to the effectiveness of EU climate ambition. The proposal constructs the problem in relatively focused terms: higher EU climate ambition may be undermined if emissions-intensive production shifts outside the Union or if imports produced under weaker carbon constraints replace EU production. It attributes the cause of this problem to uneven carbon constraints across jurisdictions and to the limitations of free allocation within the EU ETS. CBAM is therefore presented as necessary because it can preserve the environmental integrity of EU carbon pricing while reducing the risk that EU mitigation efforts lead to emissions increases elsewhere.

In the adopted Regulation, this framing is stabilised but broadened. Carbon leakage remains the core problem, but it is linked more explicitly to the Union's global emissions footprint, climate leadership and responsibility to support global climate action. At the same time, the conditions for an effective response become more demanding. CBAM is no longer justified only as a response to external carbon-cost asymmetries. It must also be legally defensible, methodologically precise, administratively workable and internationally cooperative. The adopted Regulation therefore broadens the legitimating basis of CBAM by presenting legal compatibility, environmental integrity, technical design and cooperation with third countries as necessary conditions for preserving its climate function.

In the 2025 amendment, the original climate rationale is retained, but the framing is recalibrated around implementation. Carbon leakage remains the underlying problem, yet administrative burden, data

constraints and implementation complexity are added as risks that may weaken CBAM's effectiveness in practice. This shifts the focus from establishing the mechanism to making it workable. Simplification is not presented as a retreat from climate ambition, but as a way to preserve the environmental objective of CBAM while reducing disproportionate burdens. Proportionality therefore becomes more prominent as a legitimating logic. Administrative requirements remain necessary for enforcement and monitoring, but they must be designed in a way that does not undermine effective implementation.

Seen across the three phases, CBAM's framing develops through establishment, stabilisation and recalibration. The 2021 proposal establishes CBAM as a climate-integrity instrument, the 2023 Regulation stabilises it through legal, administrative and cooperative forms of legitimation and the 2025 amendment recalibrates it through simplification and proportionality. Entman's functions help make this development visible by showing that the climate rationale remains stable at the level of problem definition, while the causes, justifications and recommended design features become increasingly connected to competitiveness, legality, feasibility and administrative proportionality. This indicates that CBAM's climate framing is not replaced over time, but becomes dependent on additional conditions of legitimacy.

5.5 The positioning of climate ambition

Building on the cross-phase synthesis, this section addresses the second part of the research question by examining how climate ambition is positioned in relation to competitiveness and justice. Whereas section 5.4 traced how CBAM's framing and legitimation develop over time, this section specifies the relational pattern between the three main frames.

The analysis shows that climate ambition is positioned as the primary rationale of CBAM, but not as a stand-alone justification. Across the material, climate ambition is made meaningful through the more specific problem of carbon leakage. CBAM is therefore not framed simply as a general climate measure, but as a targeted response to the risk that EU climate ambition may be undermined by emissions displacement, unequal carbon constraints or ineffective implementation. The climate frame is thus strongest in the problem definition, where carbon leakage is consistently constructed as a threat to the effectiveness and credibility of EU climate policy.

Competitiveness occupies a different position. It does not displace the climate frame, but functions as an enabling logic through which climate ambition is made politically and economically workable. Uneven carbon costs are framed both as a competitive asymmetry, because they expose EU producers to unequal conditions, and as a climate problem, because they may weaken the effectiveness of EU carbon pricing. Competitiveness therefore helps explain why carbon leakage may occur and why equalising carbon costs at the border is presented as an appropriate response. Legal compatibility and administrative feasibility perform similar functions: they do not alter CBAM's stated climate purpose, but help legitimise the mechanism as rule-based, non-discriminatory and workable.

Justice occupies a more limited and conditional position. The documents recognise several justice-related concerns, including differentiated capacities, possible external effects, dialogue with third countries, technical assistance and recognition of carbon prices paid abroad. However, these concerns rarely structure the central problem definition or determine the main policy response. Instead, justice is translated mainly into procedural and proportional forms of legitimacy. Internally, fairness is linked to equal competitive conditions, administrative proportionality, SME concerns and the avoidance of double charging. Externally, it is addressed through cooperation, technical assistance and engagement with affected third countries.

6 Discussion

This chapter turns to the broader implications of the findings and evaluates how these can be integrated into previous research. First, the findings show that CBAM is legitimised not through climate ambition alone, but through the interaction between climate, competitiveness and justice-related claims. Climate ambition remains the dominant rationale for the mechanism, as carbon leakage is consistently constructed as the central problem to be addressed. However, this rationale is made politically, legally and administratively workable through supporting logics of competitive equalisation, WTO compatibility, administrative feasibility and proportionality. This supports previous research showing that EU climate policy is rarely justified in purely environmental terms (Skjærseth and Wettestad, 2008; Bocquillon, 2018; Kinski and Ripoll Servent, 2022), but it also specifies how this pattern operates in the case of a climate-trade instrument.

These findings are particularly relevant in light of previous research on CBAM as a climate-trade instrument. Existing studies have shown that CBAM places climate ambition in direct contact with trade relations, industrial competitiveness and distributional concerns, making it one of the EU's most contested climate policy instruments (Eicke et al., 2021; Böhringer et al., 2022; Perdana and Vielle, 2022; Bellora and Fontagné, 2023). The results of this study are broadly consistent with that literature, but they also nuance it. As prior studies have shown, climate objectives are integrated into other policy domains, they may become partial, limited or subordinated to other sectoral priorities, particularly competitiveness concerns (Dupont and Oberthür, 2012). However, the findings of this study suggest that, in the case of CBAM, the climate rationale remains the organising principle throughout the policy process. In the EU policy documents analysed here, competitiveness is not primarily framed as a competing objective that weakens climate ambition. Rather, it is folded into the climate rationale itself. The argument also connects to Young et al.'s (2022) claim that climate policy instruments are often legitimised not only through their environmental purpose, but also through economic narratives concerning costs, benefits and practical acceptability. In the case of CBAM, however, competitiveness is not merely an external economic justification. Uneven carbon costs are presented as a cause of carbon leakage, while competitive equalisation is framed as necessary to protect the environmental effectiveness of EU climate policy. The 2025 revision makes this particularly visible, as simplification, proportionality and reduced administrative burdens are justified as ways to strengthen the mechanism without undermining its climate objective. In this sense, competitiveness becomes a condition for sustaining climate ambition, rather than simply a constraint upon it. Relatedly, this greater emphasis

on administrative feasibility and regulatory burden may also be read in relation to a broader competitiveness-oriented turn in EU policy after 2024, where simplification and burden reduction became increasingly central to the EU's strategic agenda (Draghi, 2024; Oberthür et al., 2026). This wider policy context may help account for the increasingly prominent role of competitiveness-related legitimisation in the later stages of the policy process, particularly in the 2025 revision.

The continued dominance of the climate rationale throughout the policy process also reflects the EU's green trajectory under the European Green Deal, in which climate neutrality and decarbonisation are positioned as central policy objectives (Schunz, 2022, p. 1). At the same time, the findings suggest that this green trajectory is increasingly articulated through a more strategic vocabulary, as noted by recent scholarship (Wennick, 2025). The analysis shows how CBAM relies on normatively charged language to legitimise the mechanism as a climate instrument, describing climate change as a “dangerous” threat and thereby framing CBAM as a necessary response to an urgent and serious problem. This does not mean that the climate rationale disappears. Rather, climate ambition becomes increasingly tied to concerns about policy robustness and strategic capacity. CBAM illustrates this development because it frames climate ambition as something that must be defended against external regulatory asymmetries and implementation risks.

Justice-related tensions in CBAM implementation also reflect these external asymmetries. Justice is present in the legitimisation of CBAM, but it is not incorporated as a central organising principle of the mechanism. As a result, the EU can present CBAM as fair without fundamentally altering its underlying design. This produces a relatively narrow justice frame, in which CBAM's fairness rests more on equal treatment, procedural recognition and implementation flexibility than on redistribution or differentiated responsibility. The distinction between internal and external fairness therefore becomes especially important. Internally, the simplification agenda can be framed as fair because it reduces burdens for smaller importers and improves proportionality within the EU regulatory system (Perdana and Vielle, 2022; Pirlot, 2024). Externally, however, the same design may still create asymmetrical effects for third-country producers with fewer resources to document actual emissions. The finding aligns with Szulecki's (2022) argument that CBAM does not function only as a defensive instrument against carbon leakage, but also as a mechanism of external regulatory influence. The findings therefore suggest that CBAM's justice rationale is strongest when fairness can be translated into proportionality and administrative workability, but weaker when fairness requires addressing unequal capacities beyond the EU. This supports the broader conclusion that CBAM manages the climate-competitiveness-justice trilemma through framing and legitimisation, rather than resolving it

substantively. In addition, the analysis shows how the use of conservative default values reveals the justice-related limits of this approach. A high default value may be environmentally cautious because it reduces the risk of underestimating embedded emissions. Yet it may also disadvantage producers with lower actual emissions but weaker monitoring and reporting capacity. In this sense, a technical design choice can reproduce distributive tensions even when it is justified as administratively necessary and environmentally prudent. Although this lies outside the scope of this thesis, this design justification may also have implications for how climate policy is positioned in relation to justice and competitiveness concerns.

7 Conclusion

This thesis has examined how EU institutions frame and legitimise CBAM from policy proposal to early revision, with particular attention to how climate objectives are positioned in relation to competitiveness and justice. Guided by framing theory and a qualitative content analysis of EU policy documents, the study demonstrates that CBAM's competing rationales are not articulated as separate or equivalent objectives. Instead, EU institutions connect them through a justificatory logic in which climate integrity remains the governing rationale. Competitiveness stabilises and operationalises the mechanism, while justice qualifies its legitimacy without structuring its core design.

More specifically, the study shows that carbon leakage functions as the central problem definition throughout the policy process. CBAM is presented as necessary because uneven carbon costs are framed both as a risk to EU industry and as a threat to the environmental effectiveness of EU carbon pricing. Competitiveness is therefore not primarily constructed as an external constraint on climate ambition. Rather, it is incorporated into the climate rationale through claims about competitive equalisation, WTO compatibility, administrative feasibility and proportionality. Justice concerns are also present, particularly through references to differentiated capacities, dialogue with third countries, technical assistance and the recognition of carbon prices paid abroad. Yet these concerns are mainly expressed through procedural and cooperative commitments rather than through redistributive obligations. This adds to research on CBAM's distributive implications by showing that justice concerns are not absent from EU policy discourse but are incorporated in a limited and mainly procedural form. While EU institutions present CBAM as fair, fairness is primarily framed through procedural recognition, cooperation and proportional implementation rather than redistribution or differentiated responsibility. The study therefore supports the concern that CBAM's justice rationale remains comparatively weak, as it strengthens the mechanism's legitimacy at the margins without shaping its core design.

While these findings largely correspond to the EU's stated presentation of CBAM as a climate instrument, they also suggest that the CBAM trilemma is managed through legitimation rather than resolved. EU institutions make climate ambition politically, legally and administratively sustainable by linking it to competitiveness, legal compatibility, administrative feasibility and proportionality. Since climate ambition is often less contested as a general objective than the instruments through which it is pursued, legitimation becomes central to the political viability of such instruments. The findings

therefore speak to the broader question of how ambitious climate policy can become governable in complex settings at the climate-trade nexus. Rather than relying on environmental arguments alone, EU institutions make climate policy politically viable by linking it to economic, legal and administrative concerns. The thesis therefore contributes to CBAM research by showing how the mechanism's competing rationales are connected and legitimised within EU policy discourse, rather than treating climate, competitiveness and justice as separate policy dimensions. This supports calls in the literature for a multi-perspective understanding of CBAM and the governance complexity surrounding it. At the same time, the findings show the limits of this mode of legitimation. When justice concerns are translated mainly into procedural and cooperative terms, they risk becoming subordinate to the dominant climate-integrity and competitiveness rationales. This has policy implications for CBAM implementation, since the mechanism's legitimacy may depend on whether affected third countries and producers regard procedural fairness commitments as sufficient. Future research could therefore examine how third parties, such as non-EU countries or industry stakeholders, interpret and contest CBAM's legitimacy. It would also be valuable to analyse whether the procedural fairness commitments identified in this thesis become more substantive as CBAM moves from transitional reporting to full implementation. Such studies would help assess whether the framing of CBAM continues to stabilise the instrument, or whether unresolved tensions around competitiveness and justice become more politically salient over time.

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Appendix I

Table 3. Empirical material

Institution	Document title	Document number	Date	Available at:
European Commission	<i>Proposal for a Regulation of the European Parliament and of the Council establishing a carbon border adjustment mechanism.</i> COM(2021) 564 final, 2021/0214(COD). Brussels: European Commission, 14 July 2021.	COM(2021) 564 final, 2021/0214(COD)	14 July 2021	https://eur-lex.europa.eu/resource.html?uri=cellar:a95a4441-e558-11eb-a1a5-01aa75ed71a1.0001.02/DOC_1&format=PDF
European Commission	<i>Commission staff working document: Impact Assessment report. Accompanying the document Proposal for a Regulation of the European Parliament and of the Council establishing a carbon border adjustment mechanism.</i> SWD(2021) 643 final, Parts 1/2 and 2/2. Brussels: European Commission, 14 July 2021.	SWD(2021) 643 final	14 July 2021	https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52021SC0643
Council of the European Union	<i>Proposal for a Regulation of the European Parliament and of the Council establishing a carbon border adjustment mechanism – General approach.</i> Council document 7226/22. Brussels: Council of the European Union, 15 March 2022.	7226/22	15 March 2022	https://data.consilium.europa.eu/doc/document/ST-7226-2022-INIT/en/pdf
European Parliament	<i>Report on the proposal for a Regulation of the European Parliament and of the Council establishing a carbon</i>	A9-0160/2022	24 May 2022	https://www.europarl.europa.eu/doceo/document/A-9-2022-0160_EN.pdf

	<i>border adjustment mechanism. A9-0160/2022. Brussels: European Parliament, 24 May 2022.</i>			
European Parliament	<i>Position of the European Parliament adopted at first reading on 18 April 2023 with a view to the adoption of Regulation (EU) 2023/... of the European Parliament and of the Council establishing a carbon border adjustment mechanism. P9_TC1-COD(2021)0214. Brussels: European Parliament, 18 April 2023.</i>	<i>P9_TC1-COD(2021)0214</i>	<i>18 April 2023</i>	https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52023AP0100
European Parliament and Council of the European Union	<i>Regulation (EU) 2023/956 of the European Parliament and of the Council of 10 May 2023 establishing a carbon border adjustment mechanism. Official Journal of the European Union, L 130, 16 May 2023.</i>	<i>Regulation (EU) 2023/956</i>	<i>10 May 2023</i>	https://eur-lex.europa.eu/eli/reg/2023/956/oj/eng
European Commission	<i>Proposal for a Regulation of the European Parliament and of the Council amending Regulation (EU) 2023/956 as regards simplifying and strengthening the carbon border adjustment mechanism. COM(2025) 87 final, 2025/0039(COD). Brussels: European Commission, 26 February 2025.</i>	<i>COM(2025) 87 final, 2025/0039(COD)</i>	<i>26 February 2025</i>	https://commission.europa.eu/document/download/606b4811-9842-40be-993e-179fc8ea657c_en?filename=COM_2025_87_1_EN_ACT_part1_v5.pdf
Council of the European Union	<i>Note from the General Secretariat of the Council to the Council on the Proposal for a Regulation amending Regulation (EU) 2023/956 as regards</i>	<i>SWD(2025) 58 final</i>	<i>26 February 2025</i>	https://data.consilium.europa.eu/doc/document/ST-9113-2025-INIT/en/pdf

	<i>simplifying and strengthening the carbon border adjustment mechanism – General approach.</i> Council document 9113/25. Brussels: Council of the European Union, 23 May 2025.			
European Parliament and Council of the European Union	<i>Regulation (EU) 2025/2083 of the European Parliament and of the Council of 8 October 2025 amending Regulation (EU) 2023/956 as regards simplifying and strengthening the carbon border adjustment mechanism.</i> Official Journal of the European Union, L 2025/2083, 17 October 2025.	<i>Regulation (EU) 2025/2083</i>	<i>8 October 2025</i>	https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:32025R2083

Source: Author's own compilation.

Appendix II

Table 4. Coding guidelines		
Coding label	Coding rules	Anchor examples
Climate frame		
Deductive codes		
Climate integrity	Preserve the effectiveness of EU climate policy, or protect the environmental integrity of carbon pricing	“A carbon border adjustment mechanism (...) will serve as an essential element of the EU toolbox (...) by addressing risks of carbon leakage as a result of the increased Union climate ambition” (European Commission, 2021a, p. 1).
ETS coherence	Highlights CBAM as an extension of, or complement to, the EU ETS, especially where free allocation is presented as weakening the carbon price signal.	“Free allocation of allowances prevents carbon leakage risks but also weakens the carbon price signal for EU industry compared to full auctioning” (European Commission, 2021a, p. 4).
Environmental integrity	Highlights the need to preserve the climate function, emissions coverage or environmental credibility of CBAM.	“to prevent carbon leakage and ensure the environmental integrity of the CBAM” (European Parliament and Council, 2023, Recital 19).
Inductive codes		
Urgent climate threat	Highlights climate change or carbon leakage through language of urgency, threat, undermining or jeopardising climate efforts.	“That would risk undermining the effectiveness of the EU’s emission mitigation policies (...) thus jeopardising the reduction of GHG emissions” (European Commission, 2021b, p. 2).
Climate diffusion	Highlights CBAM as contributing to decarbonisation or carbon-pricing diffusion beyond the EU.	“The CBAM is expected to also contribute to promoting decarbonisation in third countries” (European Parliament and Council, 2023, Recital 10).
Competitiveness frame		

Deductive codes	Coding rules	Anchor examples
Level the playing field	Highlights CBAM as necessary to ensure comparable competitive conditions between EU and non-EU producers.	“to ensure that imports of energy intensive products into the EU are on equal footing with EU products in terms of EU ETS carbon pricing” (European Commission, 2021a, p. 21).
Equalisation	Highlights unequal carbon costs as a source of competitive distortion or as a reason for equalising carbon constraints at the border.	“A CBAM that ensures that covered imported products bear a comparable carbon price to domestically produced products will help manage that risk” (European Commission, 2021a, p. 26).
WTO compatibility / non discrimination	Highlights legal compatibility, WTO consistency, non-discrimination or the need to avoid protectionism.	“a climate measure” intended to prevent carbon leakage while ensuring “WTO compatibility” (Council of the European Union, 2022, p. 7).
Inductive codes		
Administrative feasibility	Highlights implementation capacity, administrative manageability or the need to avoid excessive burdens.	“the management of the CBAM system should not be excessively burdensome for operators and competent authorities” (European Parliament and Council, 2023, Recital 22).
Simplification / Burden reduction	Highlights simplification as necessary to reduce compliance costs or make CBAM workable.	“The proposed simplification is expected to exempt around 90% of importers from CBAM obligations, while maintaining more than 99% of embedded emissions in scope of CBAM” (European Commission, 2025a, p. 5).
Justice frame		
Deductive codes	Coding rules	Anchor examples
Differentiated responsibility	Highlights differences in responsibility, capacity or development level, especially in relation to developing countries or LDCs.	“to ease the transition, a gradual phasing in of the CBAM could be considered for existing production capacities in LDCs” (European Commission, 2021a, p. 30).
External impacts on third countries	Highlights possible burdens, adjustment costs or unequal effects on trading partners outside the EU.	“Moreover, the EU will engage with third countries whose trade to the EU is affected by this Regulation to explore possibilities for dialogue and cooperation with regard to the implementation of specific elements of the

		Mechanism” (European Commission, 2021b, p. 3).
Procedural fairness / cooperation	Applied where fairness is addressed through dialogue, cooperation, transparency, technical assistance or recognition of carbon prices paid abroad, rather than through redistribution or exemption.	“The Union should continue to engage, in an even-handed manner, with third countries whose trade to the Union is affected by this Regulation” (European Parliament and Council, 2023, Recital 71).
Inductive codes		
Recognition of third-country carbon pricing	Applied where the material frames fairness or legitimacy through the recognition of carbon prices already paid in third countries, including as a way to avoid double charging.	“It should also explore possibilities for concluding agreements to take into account their carbon pricing mechanism” (European Commission, 2021b, p. 3).
Proportionality	Applied where fairness is framed through proportional implementation, avoidance of double charging or avoidance of excessive administrative burden.	“in order to avoid excessive administrative burden for customs authorities and for importers, goods of negligible value should be exempted from the obligations laid down in this Regulation” (European Parliament and Council, 2023, Recital 41).

Source: Author’s own construction.

Appendix III

Table 5. Cross-cutting modes of legitimation	
Code	Meaning
WTO compatibility	Appeals to consistency with WTO rules, non-discrimination, and avoidance of protectionism
Proportionality	Appeals to balance, necessity, and avoidance of excessive burdens
Legal certainty	Appeals to predictable, clear, and stable rules
ETS coherence	Appeals to consistency with the logic and operation of the EU ETS
Administrative feasibility	Appeals to implementation capacity, administrative manageability and practical workability.
Simplification	Appeals to burden reduction and streamlined administration

Source: Author's own construction.